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Case Number: 25TRCV04121 Hearing Date: September 24, 2026 Dept: P

Motion for Attorney's Fees and Costs

Moving Party: Plaintiff Nicholas Rosa

Responding Party: Defendant General Motors LLC

RULING

The court considered the moving papers, opposition, and reply. Plaintiff's Motion for Attorney's Fees and Costs is GRANTED in the total amount of \$16,929.75, consisting of \$15,345.00 in previously incurred fees, \$1,035.00 in anticipated fees, and \$549.75 in costs.

PROCEDURAL BACKGROUND

On December 4, 2025, Plaintiff Nicholas Rosa ("Plaintiff") filed a complaint against Defendant General Motors LLC ("GM") and DOES 1 through 100, inclusive, alleging four causes of action for: (1) Breach of Implied Warranty; (2) Breach of Express Warranty; (3) Violation of the Song Beverly Consumer Warranty Act; and (4) Violation of California Civil Code Section 1793.2(b).

On August 3, 2026, Plaintiff filed the instant motion along with a memorandum of costs. On September 11, 2026, GM filed an opposition. On September 14, 2026, Plaintiff filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that on November 30, 2024, Plaintiff purchased a new 2024 GMC Canyon (the "Subject Vehicle") from Penske Cadillac Buick GMC South Bay. (Complaint, ¶ 6.) Plaintiff alleges that GM provided an express written warranty in connection with Plaintiff's purchase of the Subject Vehicle. (Complaint, ¶ 7.) Plaintiff alleges that the Subject Vehicle failed to function properly and presented substantial defects during the warranty period. (Complaint, ¶ 11.) Plaintiff alleges that he presented the Subject Vehicle to GM's authorized repair facilities, but GM failed to conform the Subject Vehicle to its warranty after a reasonable number of repair attempts. (Complaint, ¶¶ 13, 42.)

LEGAL STANDARD

Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, the buyer “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, Section 1794(d)).) The buyer has “the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817.)

“A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the ‘careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case.’” (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) “The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. The court may also consider whether the amount requested is based upon unnecessary or duplicative work.” (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

DISCUSSION

Moving Party’s Argument

Plaintiff seeks an award totaling \$20,199.89, consisting of \$19,593.00 in attorney’s fees and \$606.89 in costs and expenses. Plaintiff argues that he is the prevailing party because he accepted GM’s Section 998 offer. Plaintiff argues that his counsel’s hourly rates are reasonable because the court has previously found counsel’s rates to be reasonable. Next, Plaintiff argues that his counsel’s total of 39.7 hours on this matter were reasonably and necessarily incurred and that counsel personally reviewed and reduced the time. Plaintiff’s counsel anticipates an additional 2.8 hours to review GM’s opposition, draft a reply, and prepare for and appear at the hearing on the instant motion. Finally, Plaintiff requests \$606.89 in costs and expenses and argues that they were reasonable and necessary to achieve Plaintiff’s litigation objectives. Plaintiff points to his verified memorandum of costs.

Opposing Party’s Argument

GM argues that Plaintiff requests excessive fees and argues that the court should award no more than \$5,119.64 in fees and costs. GM specifically challenges Plaintiff’s counsel’s anticipated time pertaining to the instant motion in addition to time pertaining to client intake, pre-litigation tasks, Plaintiff’s deposition, client communications, the review of GM’s initial disclosures and document production, the surrender of the Subject Vehicle and post-settlement tasks, drafting the instant motion, damages assessments, and the case management conference on May 4, 2026. GM additionally argues that Plaintiff’s counsel billed a total of 3.5 hours for administrative or clerical tasks, for which attorney’s fees are not recoverable.

Reply Argument

Plaintiff argues that GM has not provided any evidence to support its objections to Plaintiff’s counsel’s billing entries and argues that GM’s opposition does not match the billing entries identified by GM. Plaintiff further argues that GM has contradicted itself regarding Plaintiff’s counsel’s time billed reviewing GM’s document production. Next, Plaintiff argues that Plaintiff’s counsel’s time billed was necessary in response to GM’s aggressive litigation strategy. In response to each category of billing entries challenged by GM, Plaintiff argues that GM has failed to meet its burden.

Merits of the Motion

A. Entitlement to Fees

The Song-Beverly Act provides that a buyer who prevails in their action is entitled to an award “as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code Section 1794(d).)

Here, Plaintiff’s counsel declares that Plaintiff accepted GM’s Code of Civil Procedure Section 998 offer on June 2, 2026, with a copy of GM’s Section 998 offer attached as Exhibit 1 to the Geoulla Declaration. (Geoulla Decl., ¶¶ 46-47; Exh. 1.)

Therefore, the court finds that Plaintiff is entitled to recover attorney’s fees.

B. Reasonableness of Rates

1. Hourly Rate

Here, Plaintiff’s counsel bills at the following rates: partner Bryan M. Geoulla - \$450/hr; partner Ryan A. Youabian - \$495/hr; and associate Michael Josephson - \$350/hr and \$400/hr. (Geoulla Decl., ¶¶ 8, 13; Youabian Decl., ¶¶ 7, 9; Josephson Decl., ¶¶ 5, 8.)

In assessing the reasonableness of hourly billing rates, “the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.(2016) 6 Cal.App.5th 426, 437.)

The court notes that GM has not objected to the hourly rates charged by Plaintiff’s counsel. However, in light of the comparable experience of founding partners Bryan Geoulla, licensed to practice in California since 2022, and Ryan Youabian, licensed to practice in California since 2021, the court exercises its discretion to reduce Ryan Youabian’s hourly rate to \$450/hr. (Geoulla Decl., ¶ 8; Youabian Decl., ¶ 1.) To the extent that this award is inconsistent with this court’s award in a different case, the court finds that the rate of \$450/hr is reasonable and consistent with similar awards under the Lodestar analysis that this court is required to conduct.

2. Excessive Hours

Here, GM challenges Plaintiff’s counsel’s billing entries pertaining to: (1) client intake; (2) pre-litigation tasks; (3) Plaintiff’s deposition; (4) client communications; (5) reviewing GM’s initial disclosures and document production; (6) the surrender of the Subject Vehicle and post-settlement tasks; (7) drafting the instant motion; (8) damages assessments; and (9) the May 4, 2026 case management conference. GM additionally challenges 3.5 hours billed by Plaintiff’s counsel on the grounds that Plaintiff’s counsel improperly billed for administrative or clerical tasks, and GM further challenges Plaintiff’s counsel’s anticipated 2.8 hours pertaining to the instant motion.

In challenging attorneys’ fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with sufficient arguments and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.(Ibid.)

First, the court has reviewed Ryan Youabian’s billing entries on November 7 and 12, 2025 for reviewing Plaintiff’s online lemon law inquiry, emailing Plaintiff, speaking with Plaintiff regarding his case, preparing an internal case assessment, and drafting and sending the “client engagement and welcome letter.” (Geoulla Decl., Exh. 2, pp. 1-3.) The court finds that client communication is essential to the litigation process and declines to reduce Plaintiff’s counsel’s time billed for speaking with

Plaintiff over the phone and communicating with Plaintiff by email. The court finds that Plaintiff's counsel's time billed to "prepare the internal case assessment" is reasonable, and the court declines to reduce Plaintiff's counsel's total hours billed on this basis.

Next, GM challenges Plaintiff's counsel's time billed on November 15 and December 2 and 3, 2025 for reviewing and responding to Plaintiff's emails, speaking with Plaintiff over the phone, reviewing the repair order and work order and conducting research, developing an internal repair chronology, conducting a database search for the Subject Vehicle, evaluating the Subject Vehicle's CarFax report, and identifying the proper venue. (Geoulla Decl., Exh. 2, pp. 3-7.) The court declines to reduce Plaintiff's counsel's time billed for communicating with Plaintiff, as client communication is essential to the litigation process. However, given the routine nature of this lemon law action, the court finds that Plaintiff's counsel's total time billed to "identify the proper venue," evaluate the Subject Vehicle's CarFax report, reviewing the repair order and work order, and developing the repair chronology is excessive. Accordingly, the court exercises its discretion to reduce Ryan Youabian's total hours billed by 0.6 hours.

GM also objects to Plaintiff's counsel's total time billed on March 31, April 2, 3, 6, and 28, 2026 pertaining to Plaintiff's deposition, on the grounds that the deposition lasted forty minutes and Plaintiff's counsel's additional work was duplicative and excessive. The court declines to reduce Plaintiff's counsel's time billed on March 31, 2026 and April 28, 2026 for speaking to Plaintiff regarding his deposition and on April 3, 2026 for conducting a mock deposition with Plaintiff, as both constitute client communication. However, the court agrees that Plaintiff's counsel's time billed for "[breaking] down client file and create[ing] deposition prep outline with exhibits expected for depo prep with Client" is excessive and exercises its discretion to reduce Ryan Youabian's total hours billed by 0.3 hours. (Geoulla Decl., Exh. 2, p. 15.)

Next, GM argues that Plaintiff's counsel billed a total of 6.7 hours communicating with Plaintiff, which GM challenges as unreasonable and excessive. As previously discussed, the court finds that client communication is essential to the litigation and declines to reduce Plaintiff's counsel's total hours billed on this basis.

GM next objects to Plaintiff's counsel's time billed reviewing GM's initial disclosures and document production on February 20 and March 7, 2026 on the grounds that GM's document production was standard and much of the information contained in the documents was already in Plaintiff's counsel's possession. (Geoulla Decl., Exh. 2, pp. 12-13.) The court agrees that Plaintiff's counsel's total 3.2 hours billed here is excessive in light of the standardized nature of GM's document production and exercises its discretion to reduce Bryan Geoulla's total hours billed by 0.1 hours and Ryan Youabian's total hours billed by 0.9 hours.

The court has reviewed Plaintiff's counsel's time billed between June 22 and July 31, 2026 pertaining to the surrender of the Subject Vehicle and post-settlement tasks which GM challenges as clerical. (Geoulla Decl., Exh. 2, pp. 18-20.) The court notes that several of the challenged billing entries consist of communicating with Plaintiff by phone or by email, and the court declines to reduce Plaintiff's counsel's time billed for client communication. However, the court finds that Plaintiff's counsel billed excessive time for "run[nin]g and review[ing] Current CarFax report for subject vehicle" and "calculate[ing] PJI and confirm[ing] figure is correct." (Geoulla Decl., Exh. 2, pp. 19-20.) The court also finds that "receiv[ing] PJI check" is a purely administrative task. (Geoulla Decl., Exh. 2, p. 19.) Therefore, the court exercises its discretion to reduce Bryan Geoulla's total hours billed by 0.3 hours.

Next, GM objects to Plaintiff's counsel's total of 2.9 hours billed for drafting the instant motion, drafting the supporting declarations, and reviewing the billing entries. (Geoulla Decl., Exh. 2, p. 20.) GM argues that the instant motion is templated and "requires little revision beyond case-specific facts." (Opp. 6:18.) Due to Plaintiff's counsel's use of a template and the routine nature of this action, the court exercises its discretion to reduce Bryan Geoulla's total hours billed by 0.4 hours.

GM additionally objects to Plaintiff's counsel's time billed on December 26, 2025, May 5 and 13, and June 1, 2026 for analyzing and assessing damages in this matter on the grounds that damages are statutorily proscribed and thus counsel's billing entries are duplicative. The court has not identified a June 1, 2026 billing entry for analyzing damages. The court has reviewed the remainder of the challenged entries and agrees that Ryan Youabian's 1.2 hours billed on December 26, 2025 for "complet[ing] a confidential damages evaluation for the Vehicle" is excessive and exercises its discretion to reduce Ryan Youabian's total hours billed by 0.4 hours. (Geoulla Decl., Exh. 2, p. 10.)

Next, GM challenges Plaintiff's counsel's 1.0 hour billed on May 4, 2026 to attend the case management conference. (Geoulla Decl., Exh. 2, p. 16.) GM argues that the hearing lasted approximately twelve minutes. In reply, Plaintiff argues that this entry reflects that counsel checked in at 8:07 AM, the court experienced technical issues such that cases were not called until approximately 8:53 AM, with the matter being finished at approximately 9:05 AM. (Geoulla Decl., Exh. 2, p. 16.) The court finds that Plaintiff's counsel's attendance at the hearing was essential to the litigation and declines to reduce counsel's total time billed on this basis.

In sum, the court has exercised its discretion to reduce Ryan Youabian's total hours billed by 2.2 hours and Bryan Geoulla's total hours billed by 0.8 hours.

Finally, GM requests that the court entirely strike Plaintiff's counsel's anticipated 2.8 hours to review GM's opposition, draft a reply brief, and prepare for an attend the hearing on the instant motion. Instead, the court reduces the expected time necessary for a reply brief and motion hearing to 2.3 hours sua sponte as the 2.8 hours requested is inconsistent with what the court believes is necessary under the circumstances.

3. Administrative Tasks

GM argues that Plaintiff's counsel billed a total of 3.5 hours on purely clerical tasks for which attorney's fees are not recoverable. (See *Missouri v. Jenkins* by Agyei (1989) 491 U.S. 274, 288 n. 10 ("purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them.").)

The court has reviewed Plaintiff's counsel's billing entries and has identified the following entries for purely administrative tasks. Bryan Geoulla billed a total of 0.4 hours on December 4 and 5, 2025 for "review[ing] email re eFiling Under Court Clerk Review for Complaint docs," "review[ing]/respond[ing] to One Legal re SOP," "review[ing] email from One Legal," and "review[ing] email re eFiling Accepted by Court Clerk for Complaint docs." (Geoulla Decl., Exh. 2, p. 7.) The court finds that Plaintiff's counsel has improperly billed for tasks pertaining to the filing of documents, which are purely clerical. Therefore, the court exercises its discretion to reduce Bryan Geoulla's total hours billed by 0.4 hours.

The court has identified similar billing entries by Bryan Geoulla on December 8, 9, and 10, 2025 for "review[ing] email re POS from One Legal," "review[ing] email re Electronic Service from Superior Court," "review[ing] One Legal Email," and "review[ing] email re eFiling." (Geoulla Decl., Exh. 2, p. 8.) Therefore, the court exercises its discretion to reduce Bryan Geoulla's total hours billed by 0.7 hours.

Additionally, the court has identified similar billing entries by Bryan Geoulla on January 15, 2026 for "review[ing] email re eFiling," and "review[ing] email from One Legal." (Geoulla Decl., Exh. 2, p. 11.) The court has also identified an entry by Bryan Geoulla on May 4, 2026 for "review[ing] Electronic Service from Superior Court," which the court finds constitutes a purely clerical task. (Geoulla Decl., Exh. 2, p. 16.) The court exercises its discretion to reduce Bryan Geoulla's total hours billed by an additional 0.5 hours.

In sum, the court has reduced Bryan Geoulla's total hours billed by 1.6 hours on the basis of constituting purely clerical tasks.

Accordingly, Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$16,380.00, consisting of \$15,345.00 in previously incurred fees and \$1,035.00 in anticipated fees pertaining to this motion.

C. Costs

Here, Plaintiff has submitted a memorandum of costs on August 3, 2026, and GM does not attempt to challenge Plaintiff's requested \$606.89 in costs. The court has reviewed Plaintiff's memorandum of costs and finds that the requested costs appear proper on their face, with the exception of the requested \$57.14 in "other" costs, because Plaintiff has not specified what these costs consist of. The court has reviewed the receipts attached as Exhibit 4 to the Geoulla Declaration but finds that Plaintiff has failed to provide an itemized description of the requested \$57.14.

Accordingly, Plaintiff's request for costs is GRANTED in the amount of \$549.75.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Attorney's Fees and Costs is GRANTED in the total amount of \$16,929.75, consisting of \$15,345.00 in previously incurred fees, \$1,035.00 in anticipated fees, and \$549.75 in costs.

Moving party is ordered to give notice of ruling.